TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JULY 30, 2018
MINUTES

Green arrows  *in Minutes are hyperlinks to the recording.*

Attachment 1—Staff Report

Present: Joseph Belton, Chair, David Rubin, Barry Wolff, Bobby Carrier, Stephen Wood, Glyn Cowden.
Absent: Stephen Duke.
Staff: Michael Robertson, Lynnette Lynes

Mr. Belton called the meeting to order at 6:02 pm and reviewed the procedures with the public.

1. Approval of Agenda

Mr. Wolff moved for approval of the agenda. Mr. Rubin seconded the motion. All in favor.

2. Approval of Minutes

Mr. Wolff moved for approval of the minutes. Mr. Rubin seconded the motion. All in favor.

Mr. Belton administered the oath to those speaking.

3. Public Comment & General Correspondence

There being no comments, Mr. Belton continued with the agenda.

4. Business

A. Case S-5-18, 440 West Coleman Blvd., TM#517-07-00-024, Request for Special Exception in accordance with the strict standards of §§156.411(A)(3) (a)-(d); 156.113-156.120; 156.323; 156.200-156.201 to allow 105-foot tall, stealth-style wireless telecommunications facility.

Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Belton asked Mr. Robertson to read the previously noted correspondence from Mikell Harper for the record (attachment 2).

Mr. Jonathan Yates, attorney for the applicant, reviewed the request with the Board. He stated that additional time might be needed to address this request.

Mr. Martin Deputy, Beacon Towers, submitted a letter of termination that they received in 2006 to the Board (attachment 3). He reviewed the reasons they cannot co-locate.

The Board agreed to allow three additional minutes for the applicant to review the request.

Mr. Yates continued with his review of the request. He stated that the application meets all requirements outlined in the ordinance.

Mr. Frank Toler, 949 Shem Creek, stated that he witnessed the balloon test that was conducted and the balloon was visible. He suggested that the applicant is creating its own hardship. He suggested that the applicant would need additional variances in order to make this tower work. He suggested that an additional balloon test should be conducted for the Board to see the impact.

Mr. Jimmy Bagwell, 41 Vincent Dr, stated that he has a business on Coleman Drive and drives the roadway on a daily basis. He suggested that the cell tower would detract from the vista views and view of Shem Creek and Coleman Blvd. He suggested that this is not the appropriate location for the tower. He suggested that the Board should deny the request.

Mr. Robert Hill, 1300 Royall Links, stated that he is in favor of the request. He suggested that a stealth tower would not be a significant impact or eyesore to the area. He stated that the Channel 2 tower can be seen for a greater distance. He suggested that the location is more appropriate than it would be across the street.

Mr. Mikell Harper, one of the owners of Peach Orchard Plaza, stated that as indicated in his letter, the tower on their property, has capacity for co-location. He stated that termination notice was sent to T-mobile almost one year ago that indicates that the co-location lease would not be renewed, but a month-to-

month would be considered. He stated that this decision was made in order to have the flexibility to relocate the tower in the future. He stated that he is opposed to the request.

Mr. Trenholm Walker, attorney for Mr. Harper, asked that the request be denied as it does not meet the criteria for a special exception. He suggested that it has not been demonstrated that there is not adequate cell phone coverage for that area. He stated that there is an existing structure that could be utilized. He stated there was no consideration of the remainder of the site in terms of how the tower would affect parking, drainage, vegetation, historic trees, etc. He suggested that for these reasons and including the information in the staff report, the request should be denied.

Mr. Miles Martschink, 426 West Coleman Blvd, reviewed his letter with the Board. He suggested that if approved at the proposed location, it should be deed restricted so the property cannot be used for consumption of food and beverages. He stated that this is not the best location for the tower and it should be located elsewhere. He suggested that the tower would adversely affect the streetscape. He suggested that this is not a good plan, and the request should be denied.

Ms. Alisa Moreno, 1019 Tall Pine Road, stated that she manages communications for the Groves HOA and she has received feedback from the neighborhood on this issue. She suggested that many of the residents are concerned with the location, height, safety, and the visual impact of the tower. She stated that the applicant has met with the neighborhood to try to resolve any concerns, but there are still concerns that this would be an eyesore. She suggested that there could be a different, more appropriate location for the tower. She asked that the request be denied.

Ms. Christine Riley, 966 Lakeview Dr, expressed concern with whether this is an appropriate location for the tower. She suggested that repeaters could be located on top of adjacent buildings to help with service. She suggested that if approved, the tower would be an eyesore. She suggested that the small-town feel should be maintained. She asked that the request be denied.

There being no further comments, Mr. Belton closed public comment.

Mr. Robertson stated that correspondence was received on this issue and was forwarded to the Board for review. Mr. Belton asked if the Board had an opportunity to review the correspondence. The Board answered in the affirmative.

Mr. Wolff expressed concern with not exhausting all other alternatives to co-locate on an existing tower and suggested that this criteria has not been met. He also expressed concern with the fall zone and that the engineer did not certify the tower would land within the fall zone in the event of a storm event and referred to the engineer's letter.

Mr. Cowden expressed concern with the stealth tower and the proposed height. He suggested that it is not an appropriate location as it is located in proximity to Coleman Blvd and if it falls during a storm event, it could block an evacuation route. He stated that he is opposed to the request.

Mr. Belton suggested that the applicant has not met all the requirements outlined in the ordinance, such as the need for the tower, lack of providing that all alternatives have been exhausted, need for public safety, etc. He suggested that the request would impact the character of the neighborhood.

Mr. Wood suggested that alternatives have to be exhausted and asked if this is included in the submittal. Mr. Deputy answered in the affirmative and stated that the population map shows the need. Mr. Wood asked if the sites numbered show alternate locations. Mr. Deputy answered in the negative and stated that the sites are existing towers and where those towers have coverage and reviewed the map with the Board. Mr. Wood asked why not co-locate on one of the towers. Mr. Deputy answered that they are co-located on all the existing towers. Mr. Wood asked if additional locations have been considered. Mr. Deputy answered in the affirmative. Mr. Yates answered that the additional information was provided in the handout. Mr. Deputy answered that the existing towers are not high enough to provide sufficient service. He stated that if this requested is denied, then the tower near Shem Creek would have to be significantly increased in height to provide sufficient coverage.

Mr. Rubin asked if repeaters could be located between the towers to provide better coverage. Mr. Deputy asked if this is allowed by the ordinance. Mr. Robertson read §156.116(B) for the Board. Mr. Rubin asked if this could be

accomplished. Mr. Deputy answered in the affirmative. Mr. Rubin suggested that this would significantly impact the existing restaurant and their parking requirements. Mr. Deputy answered that they meet the parking requirements. Mr. Robertson answered that as indicated in the staff report the site plan submitted does not meet the DRB site plan requirements as outlined in the ordinance. Mr. Deputy suggested that the parking did not change. Mr. Robertson stated that the site plan submitted does not meet the zoning code requirements.

▶ *Mr. Wolff moved for denial based on the findings that they have not met the criteria set forth in §156.117, as they have not provided justification that there are no other opportunities to co-locate. Mr. Rubin seconded the motion. All in favor.*

B. Case V-22-18, 401 Royall Avenue, TMS# 532-05-00-059, Appeal from the strict application of §156.313 OLD VILLAGE HISTORIC DISTRICT OVERLAY DISTRICT to allow greater than 40% impervious lot coverage and §156.201 Buffeyards to allow maintenance of existing bufferyards. The proposed fifty percent improvement to the tennis courts and lot requires full compliance with the ordinance.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1). Mr. Belton asked if the Board had an opportunity to review the correspondence provided. The Board answered in the affirmative.

Mr. Warren Pruitt, representative, reviewed the request with the Board.

Mr. Bagwell stated that he supports this request and suggested that it is greatly needed for the entire Town. He asked that the Board support the request.

Ms. Carol Tinkey, 208 Venning St, suggested that this is an appropriate use for a variance. She stated that the courts are highly used and suggested that reducing the number of courts would be a detriment to the community.

Mr. Charles Clause, 701 Royall Ave, stated that the project received a grant for the three courts. He stated that he supports the request. He stated that he has a petition of over 350 residents in support of the request. He suggested that the request should be approved. He stated that the courts are utilized by the

school teams for practice. He suggested that the adjacent residents are in favor of the request. He read a letter from an attorney for the Board.

Mr. Charlie Clause, 701 Royall Ave, stated that the tennis courts are in great need of repair for those that use them, particularly the schools. He asked that the request be approved for three full courts.

Ms. Jill DeFord, 121 Live Oak, stated that her entire family utilizes the courts on a regular basis. She stated that the additional court is greatly needed. She asked that the request be approved.

A resident stated that the courts are utilized by all age groups and stated that the three courts are greatly needed. She asked that the request be approved.

Mr. Carter Griffin, 840 Pitt St, asked that the request be approved for three tennis courts. He stated that the courts are used often and there is often a waiting period for the courts. He stated that the courts in great need of repair and are regularly used by youth that live in the nearby neighborhoods.

Mr. Jon Piebenga, 641 Royall Ave, agreed that the request should be approved.

Ms. Kate Kennedy, 410 Church St, stated that the courts have a lot of use by all ages. She stated that there is often a waiting period and asked that the request be approved.

Ms. Heather Wilson, Old Village Historic District Commission (OVHDC) member, stated that the OVHDC is in favor of the request and asked that the variance be approved.

Ms. Beth Burden, 216 Freeman St, stated that she is in favor of the request and asked that it be approved so the courts can be improved as soon as possible.

Mr. Belton suggested that the hardship has been met. He stated that the purpose of the Old Village Historic District is to foster pride and promote economic and general welfare to the people in the Old Village. He suggested that this is an important amenity for the community and suggested that this should be considered.

Mr. Carrier asked what the square footage of the courts and could the courts be reconfigured to better fit the site. Mr. Pruitt answered in the negative and stated that the courts are currently well under the size typically seen. He stated that the only other option would be to remove one of the tennis courts.

▶ *Mr. Carrier moved for approval of the request based on the findings that the request meets all the criteria. Mr. Cowden seconded the motion. All in favor.*

The Board convened for a short break at 7:55 pm and reconvened at 8:02 pm.

C. Case S-6-18, 638 Adluh Street, TMS 532-06-00-064. Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast.

▶ Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Travers McCaskill, owner, reviewed the request with the Board.

Ms. Laurie Bixler, 144 3rd Ave, stated that she supports well-run short-term rentals or bed and breakfasts and is in favor of this request. She suggested that the request meets all the requirements and asked that it be approved.

There being no further comments, Mr. Belton closed public comment.

Mr. Wolff asked about parking and if the parking is pervious in the right-of-way could count for the designated parking. Mr. Robertson answered in the negative, but the applicant has stated that the parking could be located in the garage.

Mr. Belton suggested that the criteria has been met.

▶ *Mr. Wolff moved for approval based on the findings that the applicant has met all criteria as indicated in the staff report. Mr. Cowden seconded the motion. All in favor.*

D. Case V-23-18, 683 York Street, TMS# 535-04-00-171, Request for a relief from the strict standards of §156.3224 (C)(1)(a) and §156.223 (A)(1) to allow removal of historic tree.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Rosalee Bess, owner, reviewed the request with the Board.

Ms. Emma Williams, niece of applicant, stated that she measured and reviewed the tree and stated that it is a hazard and asked that the request be approved.

There being no comments, Mr. Belton closed public comment.

Mr. Carrier asked if there was an arborist report was submitted.

Mr. Cowden stated that he reviewed the tree and there is significant lean with the main limbs and stated that if not in severe decline, it appears to be heading in that direction.

- *Mr. Wolff moved for deferral of the request in order to have an arborist or staff review the tree and report back to the Board. Mr. Wood seconded the motion. All in favor.*

E. Case S-7-18, 529 Live Oak Drive, TMS# 517-16-00-018, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast.

Mr. Cowden recused himself due to a conflict of interest.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Rene Stauffer, applicant, reviewed the request with the Board. She stated that she has signatures of support from her adjacent neighbors.

Ms. Bixler stated that she supports the request, the application meets the criteria and asked the request should be approved.

Mr. Wolff asked Ms. Bixler how many have short-term rentals without proper approval. Ms. Bixler answered that she is not exactly sure, but suggested that there are approximately 100 that have not received Town approval. She suggested that many are not aware that Town approval is needed.

There being no further comments, Mr. Belton closed public comment.

Mr. Wolff asked if the request meets the parking requirements. Mr. Robertson answered that it appears to meet the parking requirement. Ms. Stauffer answered in the affirmative.

Mr. Belton asked how many parking spaces are required. Mr. Robertson answered that one for the home and one for bed and breakfast. He stated that residential allows tandem parking.

- *Mr. Wolff moved for approval based on the findings that the application has met all criteria as indicated in the staff report. Mr. Rubin seconded the motion. All in favor with Mr. Cowden abstaining.*

F. Case S-8-18, 506 Live Oak Drive, TMS# 517-16-00-052, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow a Bed and Breakfast.

Mr. Cowden recused himself due to a conflict of interest.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Lori Bauer, applicant, reviewed the request with the Board.

Ms. Bixler suggested that the request is similar to the previous one that was approved.

There being no further comment, Mr. Belton closed public comment.

Mr. Belton asked about signage. Mr. Robertson answered that signage is limited to four square feet, so the existing signage would need to be altered. Mr. Belton

asked how many rooms would be rented. Ms. Bauer answered that four rooms would be rented.

Mr. Wolff asked how many total rooms are in the house. Ms. Bauer answered that there are four rental rooms and one room for herself. Mr. Wolff asked if the salon/spa is a bedroom. Ms. Bauer answered in the affirmative. Mr. Wolff asked if the owner would live on the property. Ms. Bauer answered in the affirmative.

- *Mr. Belton moved for approval of the request based on findings that all requirements have been met based on testimony and staff report. Mr. Wolff seconded the motion. All in favor with Mr. Cowden abstaining.*

G. Case V-24-18, 909 Simmons Street, TMS# 532-05-00-162 Request for a relief from the strict standards of §156.315 SR2-OD; Special R-2 Overlay District to allow a front yard of thirteen and one-half feet. The ordinance requires a fifteen-foot front yard.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Melissa Leboeuf, applicant, reviewed the request with the Board.

Mr. Paul Byrd, 216 Freeman St., asked the location of the garage to the street and expressed concern that the garage would impede access to the sidewalk. He also expressed concern that the home was not up to building code and asked if the entire structure would have to be brought up to current building code.

Ms. Frances Ward stated that she was a previous owner of the home. She stated that she supports the request.

There being no further comments, Mr. Belton closed public comments.

Mr. Wood suggested that the request does not meet all criteria, particularly that if denied, it would not unreasonably restrict the use of the house. Mr. Wolff agreed.

Mr. Rubin asked if the garage could be located in the backyard. Ms. Ward answered that the side yard is very narrow to drive to the backyard. Ms.

Leboeuf agreed and stated that there are trees and a fence along the side yard that would prevent access.

Mr. Wolff asked where the addition would be located. Ms. Leboeuf showed where the addition would be located. Mr. Wolff asked if the site plan could be altered to allow access to the back and put the garage in the back of the house. Ms. Leboeuf answered that she would like to maintain the back yard for gardening.

Mr. Belton asked why a two-car garage was needed. Ms. Leboeuf answered that one spot would be used for a handicap accessible vehicle; the other spot would be used for her work vehicle.

▶ *Mr. Wood moved for denial of the request based on the findings that denial of the request would not unreasonably restrict the use of the property. Mr. Wolff seconded the motion. All in favor.*

5. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 9:12 pm.

Submitted by,
L. Lynes
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